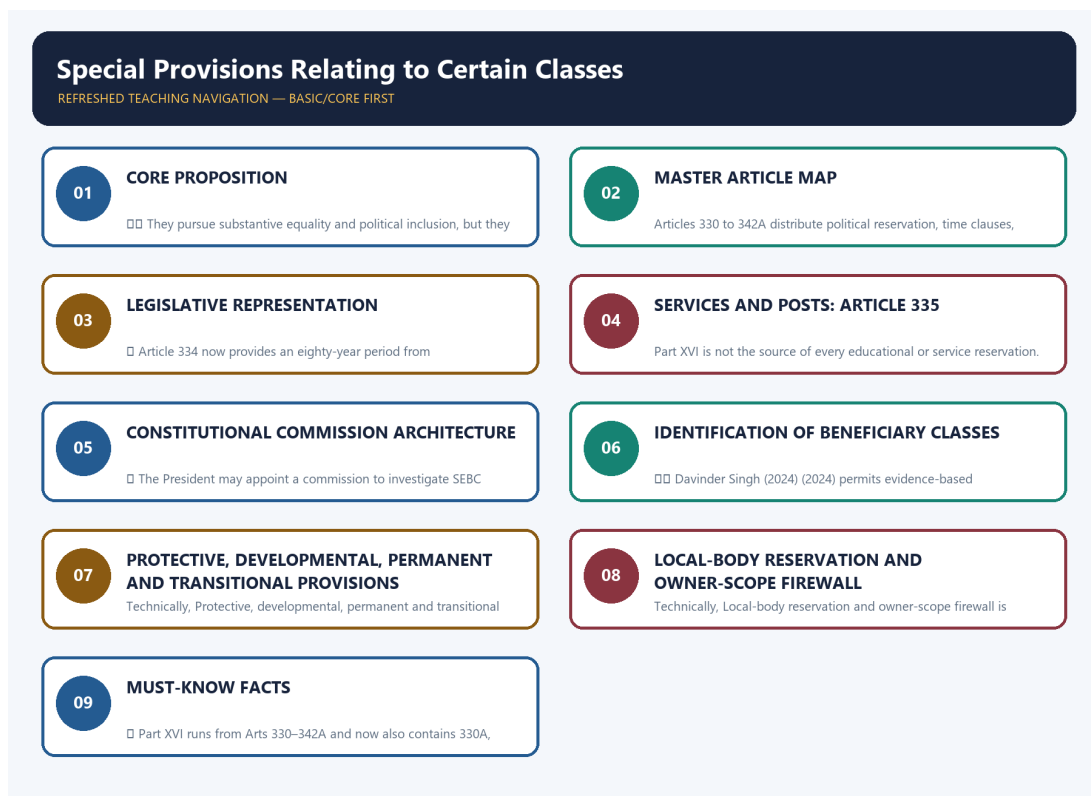


Special Provisions Relating to Certain Classes - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Special Provisions Relating to Certain Classes - Solved Practice Workbook

BASIC MCQS / REMEDIATION

MCQ 1. Which statement best describes the constitutional architecture of Part XVI?

- A. It separates legislative representation, service claims, constitutional safeguards and beneficiary-list identification.
- B. It transfers administration of all Scheduled Areas to the commissions under Articles 338-338B.
- C. It is a self-contained code for every educational and employment quota.
- D. It makes inclusion in a constitutional list an automatic entitlement to every welfare benefit.

Answer: A

Explanation: Articles 330-334A, 335, 338-340 and 341-342A create legally different techniques. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 2. Which statement about Articles 330 and 332 is correct?

- A. They permit State executives to determine the SC/ST lists.
- B. They reserve seats for SCs/STs while the constituency continues to vote through the ordinary territorial electorate.
- C. They revive separate electorates for SCs/STs.
- D. They reserve seats in the Rajya Sabha and Legislative Councils.

Answer: B

Explanation: Seat/candidacy reservation is not a communal or separate electorate. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 3. Which statement correctly distinguishes the two clocks in Article 334?

- A. The 104th Amendment deleted Articles 331 and 333 from the printed Constitution.
- B. Both SC/ST reservation and Anglo-Indian nomination were extended to 2030.
- C. The 104th Amendment extended SC/ST legislative-seat reservation to eighty years but did not extend Anglo-Indian nomination beyond seventy years.
- D. Article 334 permanently entrenches every political reservation.

Answer: C

Explanation: Textual presence and continued operation under a time clause are separate questions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 4. Which is the safest current-status statement on the 106th Amendment?

- A. It reserves one-third of Rajya Sabha and Legislative Council seats.
- B. Publication of census figures alone activates the reservation without delimitation.
- C. The reservation automatically applied to the eighteenth Lok Sabha.
- D. Enactment and incorporation are distinct from a Gazette-appointed commencement date; after commencement, Article 334A still requires published census figures and delimitation before electoral operation.

Answer: D

Explanation: Section 1(2), Article 334A and electoral implementation must be analysed as separate gates. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 5. Which proposition about Article 335 is correct?

- A. It requires SC/ST claims in services to be considered consistently with administrative efficiency and permits specified promotion-related relaxation by proviso.
- B. It creates the OBC and EWS reservation quotas.
- C. It fixes a uniform percentage for SC/ST appointments.
- D. It defines administrative efficiency exhaustively.

Answer: A

Explanation: Article 335 is neither a universal quota clause nor a statutory definition of efficiency. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 6. Which institutional mapping is correct?

- A. Article 340 permanently establishes all three commissions.
- B. Articles 338, 338A and 338B establish the NCSC, NCST and NCBC respectively.
- C. Civil-court inquiry powers make commission reports binding decrees.
- D. The commissions can amend the constitutional lists by notification.

Answer: B

Explanation: Constitutional status, inquiry powers, reporting and final policy authority must remain distinct. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 7. Which statement correctly distinguishes Articles 339 and 340?

- A. Article 339 authorises States to alter the ST list.
- B. Both provisions create permanent constitutional commissions.
- C. Article 339 concerns Scheduled Areas/ST welfare supervision, while Article 340 authorises a temporary commission to investigate backward-class conditions.
- D. Article 340 itself grants reservation without further law or policy.

Answer: C

Explanation: Union supervision and an investigative commission perform different constitutional functions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 8. Which statement reflects Articles 341 and 342?

- A. The lists are identical throughout India.
- B. The NCSC or NCST may finally add a community after inquiry.
- C. A State cabinet may alter the list by executive order.
- D. The President initially specifies the State/UT-specific list, while Parliament alone may include or exclude communities by law.

Answer: D

Explanation: The constitutional list is territorial and its alteration is reserved to Parliament. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 9. Which account of the SEBC-list architecture is correct?

- A. The 102nd Amendment constitutionalised the NCBC and Article 342A; the 105th expressly preserved a Central List and restored State/UT own-purpose list competence by law.
- B. The 102nd created the EWS quota.
- C. The 105th abolished the Central List.
- D. The 105th authorised States to alter SC/ST lists.

Answer: A

Explanation: Central-purpose and State-purpose SEBC lists coexist after the 105th Amendment. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 10. Which statement about EWS is constitutionally accurate?

- A. Janhit Abhiyan invalidated the exclusion of classes covered by existing reservation clauses.
- B. Its enabling provisions are Articles 15(6) and 16(6), inserted by the 103rd Amendment and upheld by a 3:2 majority in Janhit Abhiyan.
- C. Article 335 is the source of EWS reservation.
- D. EWS is a category within the Article 342A Central SEBC List.

Answer: B

Explanation: EWS has a separate equality-clause source and is not a Part XVI identification list. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 11. What is the narrow constitutional holding relevant from Davinder Singh (2024)?

- A. States may add and delete Scheduled Castes.
- B. Every State is constitutionally compelled to introduce sub-classification.
- C. A State may design evidence-based sub-classification within notified Scheduled Castes for fair distribution, without altering the Article 341 list or wholly excluding a listed caste.
- D. The judgment converted separate-opinion creamy-layer observations into automatic nationwide list deletion.

Answer: C

Explanation: Benefit distribution, list alteration and mandatory nationwide policy are separate propositions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 12. Which cross-owner distinction is correct?

- A. Article 334 governs Panchayat and municipal reservation.
- B. Article 275 authorises the President to amend the ST list.
- C. Part XVI exhaustively administers Fifth and Sixth Schedule areas.
- D. Articles 243D/243T govern local-body reservation, while Article 275 supplies a fiscal grant route; neither alters a constitutional list.

Answer: D

Explanation: Representation, fiscal support, list identification and area administration have separate sources. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 13. Which close-option distinction is constitutionally accurate concerning Part XVI?

- A. It separates legislative representation, service claims, constitutional safeguards and beneficiary-list identification.
- B. It makes inclusion in a constitutional list an automatic entitlement to every welfare benefit.
- C. It transfers administration of all Scheduled Areas to the commissions under Articles 338-338B.
- D. It is a self-contained code for every educational and employment quota.

Answer: A

Explanation: Articles 330-334A, 335, 338-340 and 341-342A create legally different techniques. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 14. Which close-option distinction is constitutionally accurate concerning SC/ST legislative reservation?

- A. They reserve seats in the Rajya Sabha and Legislative Councils.
- B. They reserve seats for SCs/STs while the constituency continues to vote through the ordinary territorial electorate.
- C. They revive separate electorates for SCs/STs.
- D. They permit State executives to determine the SC/ST lists.

Answer: B

Explanation: Seat/candidacy reservation is not a communal or separate electorate. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 15. Which close-option distinction is constitutionally accurate concerning Article 334?

- A. Both SC/ST reservation and Anglo-Indian nomination were extended to 2030.
- B. The 104th Amendment deleted Articles 331 and 333 from the printed Constitution.
- C. The 104th Amendment extended SC/ST legislative-seat reservation to eighty years but did not extend Anglo-Indian nomination beyond seventy years.
- D. Article 334 permanently entrenches every political reservation.

Answer: C

Explanation: Textual presence and continued operation under a time clause are separate questions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 16. Which close-option distinction is constitutionally accurate concerning the 106th Amendment?

- A. It reserves one-third of Rajya Sabha and Legislative Council seats.
- B. The reservation automatically applied to the eighteenth Lok Sabha.
- C. Publication of census figures alone activates the reservation without delimitation.
- D. Enactment and incorporation are distinct from a Gazette-appointed commencement date; after commencement, Article 334A still requires published census figures and delimitation before electoral operation.

Answer: D

Explanation: Section 1(2), Article 334A and electoral implementation must be analysed as separate gates. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 17. Which close-option distinction is constitutionally accurate concerning Article 335?

- A. It requires SC/ST claims in services to be considered consistently with administrative efficiency and permits specified promotion-related relaxation by proviso.
- B. It defines administrative efficiency exhaustively.
- C. It fixes a uniform percentage for SC/ST appointments.
- D. It creates the OBC and EWS reservation quotas.

Answer: A

Explanation: Article 335 is neither a universal quota clause nor a statutory definition of efficiency. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 18. Which close-option distinction is constitutionally accurate concerning constitutional commissions?

- A. Civil-court inquiry powers make commission reports binding decrees.
- B. Articles 338, 338A and 338B establish the NCSC, NCST and NCBC respectively.
- C. Article 340 permanently establishes all three commissions.
- D. The commissions can amend the constitutional lists by notification.

Answer: B

Explanation: Constitutional status, inquiry powers, reporting and final policy authority must remain distinct. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 19. Which close-option distinction is constitutionally accurate concerning Articles 339 and 340?

- A. Both provisions create permanent constitutional commissions.
- B. Article 340 itself grants reservation without further law or policy.
- C. Article 339 concerns Scheduled Areas/ST welfare supervision, while Article 340 authorises a temporary commission to investigate backward-class conditions.
- D. Article 339 authorises States to alter the ST list.

Answer: C

Explanation: Union supervision and an investigative commission perform different constitutional functions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 20. Which close-option distinction is constitutionally accurate concerning SC/ST list authority?

- A. The lists are identical throughout India.
- B. The NCSC or NCST may finally add a community after inquiry.
- C. A State cabinet may alter the list by executive order.
- D. The President initially specifies the State/UT-specific list, while Parliament alone may include or exclude communities by law.

Answer: D

Explanation: The constitutional list is territorial and its alteration is reserved to Parliament. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 21. Which close-option distinction is constitutionally accurate concerning the 102nd-105th Amendment sequence?

- A. The 102nd Amendment constitutionalised the NCBC and Article 342A; the 105th expressly preserved a Central List and restored State/UT own-purpose list competence by law.
- B. The 105th authorised States to alter SC/ST lists.
- C. The 102nd created the EWS quota.
- D. The 105th abolished the Central List.

Answer: A

Explanation: Central-purpose and State-purpose SEBC lists coexist after the 105th Amendment. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 22. Which close-option distinction is constitutionally accurate concerning EWS reservation?

- A. Janhit Abhiyan invalidated the exclusion of classes covered by existing reservation clauses.
- B. Its enabling provisions are Articles 15(6) and 16(6), inserted by the 103rd Amendment and upheld by a 3:2 majority in Janhit Abhiyan.
- C. Article 335 is the source of EWS reservation.
- D. EWS is a category within the Article 342A Central SEBC List.

Answer: B

Explanation: EWS has a separate equality-clause source and is not a Part XVI identification list. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 23. Which close-option distinction is constitutionally accurate concerning Davinder Singh (2024)?

- A. The judgment converted separate-opinion creamy-layer observations into automatic nationwide list deletion.
- B. States may add and delete Scheduled Castes.
- C. A State may design evidence-based sub-classification within notified Scheduled Castes for fair distribution, without altering the Article 341 list or wholly excluding a listed caste.
- D. Every State is constitutionally compelled to introduce sub-classification.

Answer: C

Explanation: Benefit distribution, list alteration and mandatory nationwide policy are separate propositions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 24. Which close-option distinction is constitutionally accurate concerning local bodies and Article 275?

- A. Article 275 authorises the President to amend the ST list.
- B. Part XVI exhaustively administers Fifth and Sixth Schedule areas.
- C. Article 334 governs Panchayat and municipal reservation.
- D. Articles 243D/243T govern local-body reservation, while Article 275 supplies a fiscal grant route; neither alters a constitutional list.

Answer: D

Explanation: Representation, fiscal support, list identification and area administration have separate sources. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 25. A State authority adopts the following proposition. Which correction is legally safest?

- A. It separates legislative representation, service claims, constitutional safeguards and beneficiary-list identification.
- B. It transfers administration of all Scheduled Areas to the commissions under Articles 338-338B.
- C. It makes inclusion in a constitutional list an automatic entitlement to every welfare benefit.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: A

Explanation: Articles 330-334A, 335, 338-340 and 341-342A create legally different techniques. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 26. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. They reserve seats for SCs/STs while the constituency continues to vote through the ordinary territorial electorate.
- C. They permit State executives to determine the SC/ST lists.
- D. They reserve seats in the Rajya Sabha and Legislative Councils.

Answer: B

Explanation: Seat/candidacy reservation is not a communal or separate electorate. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 27. A State authority adopts the following proposition. Which correction is legally safest?

- A. The 104th Amendment deleted Articles 331 and 333 from the printed Constitution.
- B. The proposition is valid because all affirmative-action powers are interchangeable.
- C. The 104th Amendment extended SC/ST legislative-seat reservation to eighty years but did not extend Anglo-Indian nomination beyond seventy years.
- D. Article 334 permanently entrenches every political reservation.

Answer: C

Explanation: Textual presence and continued operation under a time clause are separate questions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 28. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. It reserves one-third of Rajya Sabha and Legislative Council seats.
- C. Publication of census figures alone activates the reservation without delimitation.
- D. Enactment and incorporation are distinct from a Gazette-appointed commencement date; after commencement, Article 334A still requires published census figures and delimitation before electoral operation.

Answer: D

Explanation: Section 1(2), Article 334A and electoral implementation must be analysed as separate gates. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 29. A State authority adopts the following proposition. Which correction is legally safest?

- A. It requires SC/ST claims in services to be considered consistently with administrative efficiency and permits specified promotion-related relaxation by proviso.
- B. It fixes a uniform percentage for SC/ST appointments.
- C. It creates the OBC and EWS reservation quotas.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: A

Explanation: Article 335 is neither a universal quota clause nor a statutory definition of efficiency. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 30. A State authority adopts the following proposition. Which correction is legally safest?

- A. Civil-court inquiry powers make commission reports binding decrees.
- B. Articles 338, 338A and 338B establish the NCSC, NCST and NCBC respectively.
- C. The proposition is valid because all affirmative-action powers are interchangeable.
- D. The commissions can amend the constitutional lists by notification.

Answer: B

Explanation: Constitutional status, inquiry powers, reporting and final policy authority must remain distinct. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 31. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. Article 340 itself grants reservation without further law or policy.
- C. Article 339 concerns Scheduled Areas/ST welfare supervision, while Article 340 authorises a temporary commission to investigate backward-class conditions.
- D. Article 339 authorises States to alter the ST list.

Answer: C

Explanation: Union supervision and an investigative commission perform different constitutional functions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 32. A State authority adopts the following proposition. Which correction is legally safest?

- A. The lists are identical throughout India.
- B. The NCSC or NCST may finally add a community after inquiry.
- C. The proposition is valid because all affirmative-action powers are interchangeable.
- D. The President initially specifies the State/UT-specific list, while Parliament alone may include or exclude communities by law.

Answer: D

Explanation: The constitutional list is territorial and its alteration is reserved to Parliament. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 33. A State authority adopts the following proposition. Which correction is legally safest?

- A. The 102nd Amendment constitutionalised the NCBC and Article 342A; the 105th expressly preserved a Central List and restored State/UT own-purpose list competence by law.
- B. The proposition is valid because all affirmative-action powers are interchangeable.
- C. The 105th authorised States to alter SC/ST lists.
- D. The 102nd created the EWS quota.

Answer: A

Explanation: Central-purpose and State-purpose SEBC lists coexist after the 105th Amendment. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 34. A State authority adopts the following proposition. Which correction is legally safest?

- A. The proposition is valid because all affirmative-action powers are interchangeable.
- B. Its enabling provisions are Articles 15(6) and 16(6), inserted by the 103rd Amendment and upheld by a 3:2 majority in Janhit Abhiyan.
- C. Article 335 is the source of EWS reservation.
- D. Janhit Abhiyan invalidated the exclusion of classes covered by existing reservation clauses.

Answer: B

Explanation: EWS has a separate equality-clause source and is not a Part XVI identification list. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 35. A State authority adopts the following proposition. Which correction is legally safest?

- A. The judgment converted separate-opinion creamy-layer observations into automatic nationwide list deletion.
- B. Every State is constitutionally compelled to introduce sub-classification.
- C. A State may design evidence-based sub-classification within notified Scheduled Castes for fair distribution, without altering the Article 341 list or wholly excluding a listed caste.
- D. The proposition is valid because all affirmative-action powers are interchangeable.

Answer: C

Explanation: Benefit distribution, list alteration and mandatory nationwide policy are separate propositions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 36. A State authority adopts the following proposition. Which correction is legally safest?

- A. Part XVI exhaustively administers Fifth and Sixth Schedule areas.
- B. The proposition is valid because all affirmative-action powers are interchangeable.
- C. Article 275 authorises the President to amend the ST list.
- D. Articles 243D/243T govern local-body reservation, while Article 275 supplies a fiscal grant route; neither alters a constitutional list.

Answer: D

Explanation: Representation, fiscal support, list identification and area administration have separate sources. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 37. For a UPSC answer on Part XVI, which proposition should anchor the analysis?

- A. It separates legislative representation, service claims, constitutional safeguards and beneficiary-list identification.
- B. The issue is controlled only by executive policy and not constitutional text.
- C. It is a self-contained code for every educational and employment quota.
- D. It makes inclusion in a constitutional list an automatic entitlement to every welfare benefit.

Answer: A

Explanation: Articles 330-334A, 335, 338-340 and 341-342A create legally different techniques. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 38. For a UPSC answer on SC/ST legislative reservation, which proposition should anchor the analysis?

- A. They reserve seats in the Rajya Sabha and Legislative Councils.
- B. They reserve seats for SCs/STs while the constituency continues to vote through the ordinary territorial electorate.
- C. They revive separate electorates for SCs/STs.
- D. The issue is controlled only by executive policy and not constitutional text.

Answer: B

Explanation: Seat/candidacy reservation is not a communal or separate electorate. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 39. For a UPSC answer on Article 334, which proposition should anchor the analysis?

- A. Both SC/ST reservation and Anglo-Indian nomination were extended to 2030.
- B. The issue is controlled only by executive policy and not constitutional text.
- C. The 104th Amendment extended SC/ST legislative-seat reservation to eighty years but did not extend Anglo-Indian nomination beyond seventy years.
- D. Article 334 permanently entrenches every political reservation.

Answer: C

Explanation: Textual presence and continued operation under a time clause are separate questions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 40. For a UPSC answer on the 106th Amendment, which proposition should anchor the analysis?

- A. It reserves one-third of Rajya Sabha and Legislative Council seats.
- B. The reservation automatically applied to the eighteenth Lok Sabha.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. Enactment and incorporation are distinct from a Gazette-appointed commencement date; after commencement, Article 334A still requires published census figures and delimitation before electoral operation.

Answer: D

Explanation: Section 1(2), Article 334A and electoral implementation must be analysed as separate gates. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 41. For a UPSC answer on Article 335, which proposition should anchor the analysis?

- A. It requires SC/ST claims in services to be considered consistently with administrative efficiency and permits specified promotion-related relaxation by proviso.
- B. It fixes a uniform percentage for SC/ST appointments.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. It defines administrative efficiency exhaustively.

Answer: A

Explanation: Article 335 is neither a universal quota clause nor a statutory definition of efficiency. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 42. For a UPSC answer on constitutional commissions, which proposition should anchor the analysis?

- A. The commissions can amend the constitutional lists by notification.
- B. Articles 338, 338A and 338B establish the NCSC, NCST and NCBC respectively.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. Article 340 permanently establishes all three commissions.

Answer: B

Explanation: Constitutional status, inquiry powers, reporting and final policy authority must remain distinct. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 43. For a UPSC answer on Articles 339 and 340, which proposition should anchor the analysis?

- A. The issue is controlled only by executive policy and not constitutional text.
- B. Both provisions create permanent constitutional commissions.
- C. Article 339 concerns Scheduled Areas/ST welfare supervision, while Article 340 authorises a temporary commission to investigate backward-class conditions.
- D. Article 340 itself grants reservation without further law or policy.

Answer: C

Explanation: Union supervision and an investigative commission perform different constitutional functions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 44. For a UPSC answer on SC/ST list authority, which proposition should anchor the analysis?

- A. A State cabinet may alter the list by executive order.
- B. The NCSC or NCST may finally add a community after inquiry.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. The President initially specifies the State/UT-specific list, while Parliament alone may include or exclude communities by law.

Answer: D

Explanation: The constitutional list is territorial and its alteration is reserved to Parliament. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 45. For a UPSC answer on the 102nd-105th Amendment sequence, which proposition should anchor the analysis?

- A. The 102nd Amendment constitutionalised the NCBC and Article 342A; the 105th expressly preserved a Central List and restored State/UT own-purpose list competence by law.
- B. The 105th authorised States to alter SC/ST lists.
- C. The 105th abolished the Central List.
- D. The issue is controlled only by executive policy and not constitutional text.

Answer: A

Explanation: Central-purpose and State-purpose SEBC lists coexist after the 105th Amendment. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 46. For a UPSC answer on EWS reservation, which proposition should anchor the analysis?

- A. The issue is controlled only by executive policy and not constitutional text.
- B. Its enabling provisions are Articles 15(6) and 16(6), inserted by the 103rd Amendment and upheld by a 3:2 majority in Janhit Abhiyan.
- C. EWS is a category within the Article 342A Central SEBC List.
- D. Janhit Abhiyan invalidated the exclusion of classes covered by existing reservation clauses.

Answer: B

Explanation: EWS has a separate equality-clause source and is not a Part XVI identification list. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 47. For a UPSC answer on Davinder Singh (2024), which proposition should anchor the analysis?

- A. The issue is controlled only by executive policy and not constitutional text.
- B. The judgment converted separate-opinion creamy-layer observations into automatic nationwide list deletion.
- C. A State may design evidence-based sub-classification within notified Scheduled Castes for fair distribution, without altering the Article 341 list or wholly excluding a listed caste.
- D. States may add and delete Scheduled Castes.

Answer: C

Explanation: Benefit distribution, list alteration and mandatory nationwide policy are separate propositions. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

MCQ 48. For a UPSC answer on local bodies and Article 275, which proposition should anchor the analysis?

- A. Part XVI exhaustively administers Fifth and Sixth Schedule areas.
- B. Article 334 governs Panchayat and municipal reservation.
- C. The issue is controlled only by executive policy and not constitutional text.
- D. Articles 243D/243T govern local-body reservation, while Article 275 supplies a fiscal grant route; neither alters a constitutional list.

Answer: D

Explanation: Representation, fiscal support, list identification and area administration have separate sources. The other options confuse the legal source, institution, beneficiary-identification rule, benefit-conferral rule or current-status gate.

PYQS AND ANSWER PRACTICE

Verified PYQ 1 - UPSC Prelims 2023, GS Paper I, Question 40

Exact question: Consider the following statements:

Statement-I: The Supreme Court of India has held in some judgements that the reservation policies made under Article 16(4) of the Constitution of India would be limited by Article 335 for maintenance of efficiency of administration.

Statement-II: Article 335 of the Constitution of India defines the term 'efficiency of administration'.

Which one of the following is correct in respect of the above statements?

- A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
- B. Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I
- C. Statement-I is correct but Statement-II is incorrect
- D. Statement-I is incorrect but Statement-II is correct

Official answer: C.

Demand decode and solution: Statement-I reflects the judicial relationship between reservation under Article 16(4) and the efficiency consideration in Article 335. Statement-II is false because Article 335 does not define efficiency. The question tests the difference between a constitutional standard and an exhaustive statutory definition.

Verified PYQ 2 - UPSC Prelims 2024, GS Paper I, Question 81

Exact question: Consider the following statements regarding 'Nari Shakti Vandan Adhiniyam':

1. Provisions will come into effect from the 18th Lok Sabha.
2. This will be in force for 15 years after becoming an Act.
3. There are provisions for the reservation of seats for Scheduled Castes Women within the quota reserved for the Scheduled Castes.

Which of the statements given above are correct?

- A. 1, 2 and 3
- B. 1 and 2 only
- C. 2 and 3 only
- D. 1 and 3 only

Official Set-A answer: C.

Demand decode and solution: Statement 1 is incorrect because Article 334A ties electoral effect to the post-commencement census-publication-delimitation chain, not merely to the number of a Lok Sabha. Statements 2 and 3 state the enacted duration design and women-within-SC-seat design. The current-status answer must additionally distinguish enactment, commencement and operation.

Supporting cross-owned PYQ 3 - UPSC Mains 2018, GS Paper II, Question 2

Exact question: "Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine." **10 marks, 150 words.**

Demand decode: Separate the NCSC's Article 338 monitoring/inquiry/reporting role from the legal source and limits of admission reservation, especially Article 15(5)'s Article 30(1) exclusion.

Model answer: Article 338 authorises the NCSC to investigate safeguards, inquire into complaints, advise on planning and report to the President. Its civil-court powers assist investigation; they do not convert recommendations into binding judicial decrees. Educational reservation must rest on the equality provisions and valid law. Article 15(5) expressly excludes minority educational institutions protected by Article 30(1). Therefore, the NCSC can investigate discrimination, recommend corrective action and place non-acceptance before democratic institutions, but it cannot by itself compel a religious minority institution to implement a reservation that the governing constitutional provision excludes. Judicial remedies remain available for violations falling within enforceable law. The correct conclusion is institutional: a commission strengthens accountability, but cannot enlarge its jurisdiction beyond the Constitution.

Why this earns marks: It answers "can enforce", identifies Articles 338, 15(5) and 30(1), and distinguishes inquiry from adjudication. **How to improve:** Add one line on action-taken memoranda and avoid a generic discussion of all NCSC functions. **Compression:** 20-word introduction, 90-word legal analysis and 25-word qualified conclusion.

Supporting cross-owned PYQ 4 - UPSC Mains 2022, GS Paper II, Question 5

Exact question: "Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body." **10 marks, 150 words.**

Model answer: The 102nd Amendment inserted Article 338B and transformed the NCBC from a statutory body under the 1993 Act into a constitutional commission. This strengthened permanence, independence of mandate, complaint inquiry, safeguard monitoring, planning advice and reporting to the President and Parliament. Civil-court powers improve fact-finding, while consultation duties can expose the distributional impact of policy. Yet constitutional status does not make its advice binding, confer list-amending power, or merge it with an Article 340 commission. The 2021 Maratha reservation decision interpreted the pre-105th text; the 105th Amendment then expressly restored State/UT competence to maintain own-purpose SEBC lists while retaining the Central List. Thus, the NCBC's transformation deepened constitutional accountability, but effective inclusion still depends on reliable data, reasoned government response and judicially reviewable law.

Why this earns marks: It links institutional transformation to powers, federal list authority and limits. **How to improve:** Name Articles 338B and 342A in the first two sentences and do not claim the Commission itself legislates list entries. **Compression:** 25-word introduction, 95-word role-and-limit body and 25-word conclusion.

Original solved Mains practice

M1. Explain why Part XVI cannot be described as a single reservation code.

Directive: Explain | **Marks:** 10 | **Answer in:** 150 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Part XVI uses four techniques: Articles 330-334A provide political representation; Article 335 integrates SC/ST service claims with administrative efficiency; Articles 338-340 create monitoring, supervision and investigation; and Articles 341-342A identify protected classes. These provisions do not themselves supply every benefit. Educational and service reservations primarily use Articles 15 and 16; local-body seats use Articles 243D and 243T; Scheduled Area administration uses the Fifth and Sixth Schedules; and welfare grants may use Article 275. Therefore a list answers who is constitutionally recognised, while another provision or law answers what benefit follows. This distinction prevents the common error of treating commission advice, list status, quota authority and area governance as interchangeable. Part XVI is best understood as an architecture of substantive equality whose components have different decision-makers, procedures and legal effects.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 85 words of organised analysis and 25-35 words of qualified conclusion.

M2. Analyse the constitutional safeguards governing SC/ST legislative representation.

Directive: Analyse | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Articles 330 and 332 reserve Lok Sabha and Assembly seats broadly by population while retaining ordinary territorial voting, so reservation does not recreate separate electorates. Article 334 time-frames the arrangement: the 104th Amendment extended SC/ST seats to eighty years from commencement, presently reaching 25 January 2030, while Anglo-Indian nomination was not similarly extended. Delimitation law translates population and constitutional rules into constituency boundaries. The 106th Amendment adds women-within-SC/ST seat design, but enactment, commencement, census publication, delimitation and electoral operation remain separate gates under section 1(2) and Article 334A. Political reservation improves descriptive representation but cannot alone guarantee substantive voice, party autonomy or constituency accountability. A sound reform assessment therefore combines constitutional continuity, evidence of exclusion, fair delimitation and periodic democratic review.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M3. Distinguish identification of Scheduled Castes from sub-classification for distribution of benefits.

Directive: Distinguish | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Article 341 establishes a State/UT-specific identification process: the President initially specifies Scheduled Castes and Parliament alone may include or exclude communities by law. Sub-classification asks a different question-how an otherwise valid benefit should be distributed within the notified class. In Davinder Singh (2024), the Supreme Court overruled E.V. Chinnaiah v. State of Andhra Pradesh (2004) on this point and permitted evidence-based sub-classification to advance substantive equality. The State still cannot alter the Article 341 list, use political labels without data, or wholly exclude a listed caste from the benefit. Nor did the judgment constitutionally compel every State to adopt one uniform model. Identification protects list integrity; sub-classification addresses unequal benefit capture. The constitutional balance is therefore parliamentary control over membership plus judicially reviewable State design over distribution.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M4. Critically examine Article 335 as a bridge between representation and administrative efficiency.

Directive: Critically examine | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Article 335 requires SC/ST claims in Union and State services to be considered consistently with administrative efficiency. It neither fixes a quota nor defines efficiency. The 82nd Amendment proviso permits relaxation of qualifying marks or evaluation standards for promotion reservation. Read with Articles 16(4A) and 16(4B), M. Nagaraj (2006) and Jarnail Singh (2018), the provision requires a constitutionally disciplined balance rather than a presumption that equality and efficiency are opposites. Inclusive administration can improve legitimacy and institutional knowledge, but reservation design must remain evidence-based and attentive to cadre, representation and service requirements. Conversely, an undefined appeal to efficiency cannot become a device for preserving historical exclusion. The strongest interpretation treats Article 335 as an integration clause: substantive representation is pursued within a reasoned, reviewable account of administrative performance.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M5. Discuss the federal consequences of the 102nd and 105th Amendments.

Directive: Discuss | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: The 102nd Amendment constitutionalised the NCBC through Article 338B, inserted Article 342A and defined socially and educationally backward classes in Article 366(26C). In Jaishri Laxmanrao Patil (2021), the Supreme Court interpreted the pre-105th text as centralising identification for the constitutional list. The 105th Amendment responded by expressly distinguishing the Central List for Central purposes from State/UT lists prepared by law for their own purposes. The result is cooperative but differentiated federalism: national institutions retain a Central-purpose architecture while States can respond to local disadvantage. Limits remain. State SEBC-list competence does not extend to Articles 341 and 342 SC/ST lists, and list inclusion does not itself validate any quota percentage. Transparent criteria, current data and judicial review remain necessary to prevent political over-inclusion and arbitrary exclusion.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M6. Evaluate the constitutional commissions for SCs, STs and backward classes as accountability institutions.

Directive: Evaluate | **Marks:** 20 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: Articles 338, 338A and 338B give the NCSC, NCST and NCBC constitutional permanence, complaint inquiry, safeguard monitoring, planning advice, reporting duties and specified civil-court powers. Reports routed through the President, Parliament, Governors and State legislatures make governmental response visible. Their specialised mandates can identify systemic exclusion that ordinary administration overlooks. Yet they are not courts: recommendations generally remain advisory, civil-court powers relate to inquiry, and list alteration follows separate constitutional procedures. Effectiveness also depends on appointments, research capacity, data access, follow-up and reasoned action-taken memoranda. Article 339 Union supervision and Article 340 temporary commissions perform neighbouring but distinct functions. Reform should strengthen timely appointments, public dashboards, compliance tracking and institutional consultation without falsely converting expert advice into binding adjudication. These bodies are best judged as constitutional accountability multipliers rather than substitute governments.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M7. Assess EWS reservation within the wider constitutional design of substantive equality.

Directive: Assess | **Marks:** 20 | **Answer in:** 250 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: The 103rd Amendment inserted Articles 15(6) and 16(6), enabling additional reservation up to ten per cent for economically weaker sections outside the classes covered by specified existing reservation clauses. Janhit Abhiyan upheld the amendment by 3:2, including economic criteria, exclusion of already covered classes and the additional design. The measure broadens affirmative action beyond traditional social-backwardness categories, but it does not convert EWS into an Article 342A list or derive from Article 335. Its legitimacy rests on constitutional text, valid identification criteria and non-arbitrary implementation. Critics stress the relationship between economic disadvantage, structural discrimination and the ordinary Indra Sawhney ceiling; the majority nevertheless found no basic-structure violation. A balanced assessment recognises EWS as a distinct equality route while insisting that income/asset criteria, access outcomes and institutional exclusions be periodically evaluated.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 175 words of organised analysis and 25-35 words of qualified conclusion.

M8. Design a constitutional decision tree for any reservation-related problem.

Directive: Design | **Marks:** 10 | **Answer in:** 150 words.

Demand decode: Define the exact constitutional issue, organise by legal source and effect, use named evidence, confront the strongest limit and reach a qualified verdict.

Model answer: First identify the field: Parliament/Assembly seats use Articles 330-334A; local bodies use Articles 243D/243T; education and services use Articles 15-16 plus law; service efficiency adds Article 335. Second identify the class: SC/ST lists use Articles 341-342; Central and State SEBC lists use Article 342A after the 105th Amendment; EWS uses Articles 15(6)/16(6). Third identify the competent actor-President, Parliament, State legislature, commission, delimitation authority or appointing authority. Fourth distinguish identification, benefit design, monitoring and adjudication. Fifth add the controlling amendment/case and current-status date. This sequence prevents category errors and produces an answer that moves from source to power, procedure, limit and remedy.

Why this earns marks: The answer follows claim -> named Article/amendment/case -> analysis -> qualification and directly obeys the directive.

How to improve: Convert the first sentence into a precise thesis, underline the controlling Articles/cases and reserve the final two sentences for a graded conclusion.

Compression plan: 20-25 words of introduction, 85 words of organised analysis and 25-35 words of qualified conclusion.